Order# 00216085
Client Bay Area Air Quality
Product Bay Area Air Quality
Estimate 0002

Terms & Conditions:

Terms and Conditions

Digital Standard Terms & Conditions

This Purchase Order ("PO") is a contract between the vendor receiving it (the "Media Company") and Crispin LLC ("Agency") on behalf of Agency's Client ("Advertiser"). This PO functions as an Insertion Order ("IO") that is subject to the terms of IAB Standard Terms and Conditions for Interactive Advertising for Media Buys of One Year or Less Version 3.0 (https://www.iab.com/guidelines/standard-terms-conditions-internet-advertising-media-buys-one-year-less/ the "Standard Terms") by reference and as modified below. This PO shall control over any related transaction regardless of whether or when signed by Media Company, and such document shall serve only as confirmation of the placements and services above and shall not modify or add to the terms of this PO. No handwritten notation on a PO or any other terms and conditions attached hereto will be binding unless such terms are separately signed by both parties.

The following addendums will be recognized within this PO.

1. In the Definitions section, the term "Advertising Materials" is modified by adding the following to its definition, "or any additional data or materials the Advertiser or Agency provides to the Media Company."

2. Section III (Payment and Liability), is deleted in its entirety and replaced with the following:

III. Payment and Payment Liability

a. Invoices. The initial invoice will be sent by Media Company upon completion of the first month's delivery, or within 30 days of completion of the PO, whichever is earlier. Invoices will be sent to Agency's billing address as set forth on the IO and will include information reasonably specified by Agency, such as the IO number, Advertiser name, brand name or campaign name, and any number or other identifiable reference stated as required for invoiced on the IO. All invoices (other than corrections of previously provided invoices) pursuant to the IO will be sent within 30 days of delivery of all Deliverables. Media Company acknowledges that failure by Media Company to send an invoice to AP-Crispin@stagwellglobal.com within such period may cause Agency to be contractually unable to collect payment from Advertiser. If Media Company sends the invoice after the 30-day period and the Agency either has not received the applicable funds from the Advertise or does not have the Advertiser's consent to dispense such funds, Agency will use commercially reasonable efforts to assist Media

Company in collecting payment from the Advertiser or obtaining Advertiser's consent to dispense funds.

b. Payment Date. Agency's standard payment terms are 60 days from its receipt of an accurate invoice, or as otherwise stated in a payment schedule set forth on the IO. Media Company may notify Agency that it has not received payment via in such 60-day period.

c. Payment Liability. Unless otherwise set forth by Agency on the IO, Media Company agrees to hold Agency liable for payments solely to the extent proceeds have cleared from Advertiser to Agency for Ads placed in accordance with the IO. Media Company understands that Advertiser is Agency's disclosed principal and Agency, as agent, has no obligations relation to such payments, either joint or several, except as specifically set forth in this Section, Section III (C), and Section X (c).

Agency agrees to make every reasonable effort to collect and clear payment from Advertiser on a timely basis.

Agency's credit is established on a client-by-client basis.

If Advertiser proceeds have not cleared for the IO, other advertisers from Agency will not be prohibited from advertising on the Site due to such non-clearance if such other advertisers' credit is not in question.

Upon request, Agency will make available to Media Company written confirmation of the relationship between Agency and Advertiser. This confirmation should include, for example, Advertiser's acknowledgement that Agency is its agent and is authorized to act on behalf in connection with the IO and these Standard Terms. In addition, upon the request of Media Company, Agency will confirm whether Advertiser has paid to Agency in advance funds sufficient to make payments pursuant to the IO.

If Advertiser's or Agency's credit is or becomes impaired, Media Company may require payment in advance.

(d) Media Company must supply screenshots of live ads to Agency as Proof of Performance for ads placed.

3. Section XIII (Third Party Ad Servicing and Tracking) is modified by adding the following as subparts (h) through (k) shall be amended to include the following:

h. Viewability - CPM. With respect to those line items in the Media Plan, if any, that reference placement of CPM Deliverables, the following terms will apply:

i. In-View Definition. Where designated by a CPM on the IO, the Deliverable to meet the purchased quantity will be "In-View" impressions as defined below:

1. For purposes of display inventory, an impression is considered

"In-View" to a user when at least fifty percent (50%) of the pixels in the ad are in the viewable browser window for a minimum of one (1) second.

2. For purposes of Video inventory, an impression is considered "In-View" to a user when at least fifty percent (50%) of the pixels in the ad are in the viewable browser window for a minimum of two (2) consecutive seconds.

i. 3rd Party Verification and Measurement. Third party measurement is required for all products. This includes SDK integration for mobile application inventory and acceptance of VPaid tags for Video. Acceptable integrations include: MOAT, Integral Ad Science and Double Verify.

j. TAG (Trustworthy Accountability Group). All digital media inventory must be TAG certified to ensure that display inventory is free from fraud - for both US and Canada.

k. Pixel Placement Governance. Where Agency directs Media Company to place a tracking pixel (a "Pixel") on Advertiser's webpage(s) or marketing materials, the following provisions shall apply:
i. Media Company's placement and operation of the Pixel must comply with the IAB's Multi-State Privacy Agreement (MSPA) as amended from time to time (https://www.iabprivacy.com/#).
ii. Media Company is prohibited from collecting more information than specifically requested by Agency.
iii. Media Company will not use or sell the collected data except for the limited purpose of sharing reporting and information with Agency and Advertiser.

4. The following subpart is added as the new subpart (h) to Section IX, "(h) The Media Company must receive written permission from Agency prior to any ad placement. Lack of such approval shall not be considered approval."

5. Subpart (a) to Section X (Indemnification) is amended to include the following situations for which the Media Company will indemnify Agency, Advertisers and each of their Affiliates and Representatives from Losses arising from:
(iv) any Claim that Media Company's performance under this IO violates the intellectual property or contractual rights of any third party, and (v) any breach of its obligation of confidentiality under this IO or other agreement among the parties; provided that the indemnification for confidentiality is not limited to Losses arising from third-party Claims.
(vi) a claim that a party to this agreement has breached its warranty obligations.

6. Section XI of the Standard Terms is amended by adding claims involving a party's obligations under Section X as something that are excluded from any limitation of liability.

7. Subpart (g) to Section XII is added to expressly include

obligations under any applicable the Data Privacy Laws, which all pertinent laws, regulations, and other legal or self-regulatory requirements in any jurisdiction relating to privacy, data protection, data security, communications secrecy, breach notification, or the Processing of Personal Data, including without limitation, to the extent applicable, the California Consumer Privacy Act, Cal. Civ. Code Ï 1798.100 ("CCPA") and the General Data Protection Regulation, Regulation (EU) 2016/679 ("GDPR").

8. The parties recognize the importance of consumer privacy and each party will comply with any pertinent & applicable Data Privacy Laws. Each party acknowledges and understands its obligations under, but not limited to the GDPR and CCP and warrants that it will comply with the same to the extent applicable to this PO. Additionally, the Media Company warrants that it shall adhere to the Network Advertising Initiative's Code of Conduct, the Digital Advertising Alliance's Self-Regulatory Principles, the Digital Advertising Alliance of Canada's Canadian Self-Regulatory and the IAB Europe EU Framework for Online Behavioural Advertising, each as applicable (collectively, the "Self-Regulatory Programs"). The parties agree to indemnify the other parties from any Claims raised by a third-party that result from a breach of this Warranty.

9. Unless done with the prior written consent of both parties, neither party will knowingly provide or transmit any personally identifiable information ("PII") to any other party in connection with this PO.

10. Unless otherwise agreed between the parties, Media Company will use commercially reasonable efforts to set up this IO and changes to this with IO within 5 business days of receipt of all necessary materials.

11. Media Company will not use the Advertiser's name or logo in any way without the Agency's or Advertiser's prior written permission.

12. For the purposes of subpart (d) to Section XIV, all IOs will be governed by the laws of the State of New York, without giving effect to the principles of choice or conflicts of laws thereof. Each of the Parties also consents and agrees to the exclusive personal jurisdiction of any state or federal court sitting in the State of New York, waives any objection based on venue or forum non convenience

Brand Time Schedule - KQTA

CRISPIN AGENCY

PERIOD FROM NOV16/26 TO FEB28/27
TV

1712 PEASE STREET
HOUSTON, TX 77003

CLIENT BAAQ Bay Area Air Quality Market SF CA SAN FRANCISCO-OAK-SAN JOSE, CA RTG SVC-NSI
PRODUCT BAAQ Bay Area Air Quality
ESTIMATE 0002 BAAQMD - WINTER 2026 TV

REVISION: ORIGINAL

LINE#	DAY(S)	TIME	DATES	PROGRAM	LEN	DP	NOV 16	NOV 23	NOV 30	DEC 07	DEC 14	DEC 21	DEC 28	JAN 04	JAN 11	JAN 18	JAN 25	TOT	COST/TAX
STATION: KQTA KQTA-TV (CAB, CH=15)																			
SLS REP: UNASSIGNED																			
001	M-F	0700P 0800P	NOV23 FEB26	Cantonese News	:30	EM	3	3	3	3	3	3	3	3	3	3		30	N120.00
002	M-SU	0800P 0900P	NOV23 FEB28	Mandarin News	:30	PR	3	3	3	3	3	3	3	3	3	3		30	N120.00
003	M-SU	1100A 0100P	NOV23 FEB28	Vietnamese News /Var	:30	EN	3	3	3	3	3	3	3	3	3	3		30	N100.00
004	M-F	0600P 0700P	NOV23 FEB26	Filipino News/Talk	:30	PR	3	3	3	3	2	2	2	2	2	2		24	N100.00
005	M-SU	0600A 1200P	NOV23 NOV29	Transaltion Services	:1	RO	1											1	N2500.00
PRODUCTION																			
				KQTA			NOV16-JAN31	13	12	12	12	11	11	11	11	11	11	115	17765.08
							PTS/WEEK												
							DOLS/WEEK		$1552	$1552	$1435	$1435	$1435						
								$4494	$1552	$1435	$1435	$1435							
								FEB 01	FEB 08	FEB 15	FEB 22								
001	M-F	0700P 0800P	NOV23 FEB26	Cantonese News	:30	EM	3	3	3	3								12	N120.00
002	M-SU	0800P 0900P	NOV23 FEB28	Mandarin News	:30	PR	3	3	3	3								12	N120.00
003	M-SU	1100A 0100P	NOV23 FEB28	Vietnamese News /Var	:30	EN	3	3	3	3								12	N100.00

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LINE#	DAY(S)	TIME	DATES	PROGRAM	LEN	DP	FEB 01	FEB 08	FEB 15	FEB 22	TOT	COST/TAX
STATION:	KQTA	KQTA-TV		(CAB, CH=15)								
004	M-F	0600P 0700P	NOV23 FEB26	Filipino News/Talk	:30	PR	2	2	2	2	8	N100.00
			KQTA	FEB01-FEB28			11	11	11	11	44	5741.32
				PTS/WEEK								
				DOLS/WEEK			$1435	$1435	$1435	$1435		
			KQTA	TOT							159	23506.40